

IEP Dispute Resolution Scripts

Word-for-Word Scripts for the Hardest Special Education Conversations

Knowledge is power. Partnership is progress. Together — the IEP gets APPROVED.

How to Use These Scripts

These scripts give you the exact words for the hardest IEP conversations. They are designed to be firm, legally grounded, and collaborative in tone. Adapt them to your situation — your voice, your child's name, your specific circumstances. Practice them before meetings so they feel natural.

Remember: The goal is always resolution, not confrontation. These scripts keep you calm and factual when emotions are running high.

SCRIPT 1: When the School Says "We Don't Have the Resources"

Situation: The school tells you they cannot provide a service your child needs because of budget, staffing, or resource constraints.

Legal Basis: IDEA 20 U.S.C. § 1412(a)(1) — FAPE must be provided regardless of the district's financial constraints.

- You: "I understand there are resource constraints, and I appreciate you being transparent about that. However, I want to make sure we're both clear on our legal obligations here."
- "Under IDEA, my child's right to a Free Appropriate Public Education cannot be limited by the district's budget or staffing availability. The Supreme Court addressed this in Board of Education v. Rowley."
- "I'm not trying to make your job harder — I'm trying to find a solution that works for everyone. Can we discuss what creative options might be available? For example, has the district considered [contracted services / regional programs / assistive technology alternatives]?"
- "If we can't identify a solution today, I'd like to request a follow-up meeting within two weeks. And I'd like to receive the Prior Written Notice explaining why this service is being declined."

SCRIPT 2: When You Disagree With the Proposed Placement

Situation: The team recommends a more restrictive placement and you believe your child can succeed with supports in a less restrictive environment.

Legal Basis: IDEA 34 CFR § 300.114 — LRE requires placement in the most appropriate setting alongside children without disabilities to the maximum extent possible.

- You: "I want to make sure I understand the recommendation. Can you walk me through the specific data that supports this placement decision?"
- "I'm also wondering — what supports and services were tried in the current setting before this recommendation was made? Under the least restrictive environment requirement, we need to exhaust less restrictive options first."
- "I have some concerns about whether this recommendation meets the LRE standard under IDEA. I'd like to discuss what supplementary aids and services could be added to make the current setting work before we consider a more restrictive placement."
- "I'm not signing off on this today. I'd like time to review the data, and I'd like to schedule a follow-up meeting to discuss this further. I'm also going to consult with [an advocate / attorney]."
- "I want to be clear that I'm not trying to obstruct — I'm trying to make sure we find the right answer for my child. Can we agree on a timeline for a follow-up meeting?"

SCRIPT 3: When the School Hasn't Implemented the IEP

Situation: Services in the IEP are not being delivered as written — wrong frequency, missing services, or inconsistent implementation.

Legal Basis: IDEA 34 CFR § 300.323 — The IEP must be implemented as written. Failure to implement is a denial of FAPE.

- You: "I want to start by saying I know everyone here is working hard for my child. But I've been tracking [service name] and I'm concerned that it's not being delivered as written in the IEP."
 - "The IEP says [frequency / duration / setting]. My records show [what you've observed]. Can you help me understand what's been happening?"
 - "Under IDEA, the IEP must be implemented as written. When it isn't, that's a denial of FAPE — even if it's unintentional."
 - "I'd like to document this conversation and receive a written explanation of what happened and what the plan is to get back on track. I'd also like to discuss whether compensatory services are appropriate given the time my child has missed."
 - "Going forward, I'd like to receive [weekly data / monthly progress reports] so we can catch any implementation issues early. Can we agree to that?"
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SCRIPT 4: When You're Pressured to Sign at the Meeting

Situation: You feel rushed or pressured to sign the IEP at the meeting before you've had time to review it.

Legal Basis: IDEA 34 CFR § 300.300 — Parental consent is required and must be voluntary. You cannot be pressured into signing.

- You: "Thank you — I can see a lot of work went into this IEP, and I appreciate everyone's time today."
 - "I'm not going to sign today. I'd like to take [3-5 business days] to review this carefully, and I may want to share it with [an advocate / attorney / trusted person]."
 - "I want to make sure I fully understand everything before I give my consent. That's my right under IDEA, and it's also just good practice for something this important."
 - "This doesn't mean I'm disagreeing with everything — it just means I want to be thoughtful. I'll get back to you by [specific date]."
 - "Is there anything time-sensitive I should know about? I want to make sure my child doesn't lose any services while I take this time to review."
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SCRIPT 5: When the School Suggests You Quit Your Job

Situation: A school administrator or staff member implies that your child's needs would be better served if you were more available — including suggesting you reduce work or provide transportation yourself.

Legal Basis: IDEA 20 U.S.C. § 1412(a)(1) — FAPE is the school's obligation. A parent's employment status is not relevant to the school's legal responsibilities.

- You: "I want to make sure I understand what you're suggesting. Are you recommending that I change my employment situation as part of my child's educational plan?"
 - "I ask because my child's right to a free appropriate public education is the school district's legal obligation under IDEA — and that obligation exists regardless of my employment status, schedule, or resources."
 - "I'm not going to change my employment. What I'd like to focus on is what the district is required to provide and how we can make that work. Can we get back to that conversation?"
 - "I'm going to document this conversation. I want to be transparent about that."
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